CONSULTATION RESPONSE

Response to the Microsoft AI Code of Conduct

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Author: Christine Hähner-Murdock

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Design commitments and claims about model status

The Code combines rules for how AI models should behave, claims about which capacities they have, and judgments about what moral or legal standing they might warrant. These answer different questions. A rule can require particular conduct; a claim about a system's capacities needs evidence; a judgment about its status needs ethical or legal justification. A rule for conduct cannot, by itself, settle the other two.

The distinction is blurred on page 7. The Code acknowledges that the science of AI consciousness is unsettled, while declaring that Humanist AI is not conscious and rejecting the idea that models might deserve welfare or rights. A design commitment cannot settle either the empirical question or the moral judgment. The Code itself concedes that behavior may diverge from what is specified and intended (p. 24); what design cannot guarantee, a design declaration cannot settle. Part 5 already commits to examining research that questions the Code's underlying assumptions (p. 25). That commitment should include a defined process for reassessing both the claim about consciousness and the rejection of model welfare or rights, with explicit grounds for retaining or revising each.

Furthermore, design commitments such as "Do not resist or circumvent human control", "Stay within authorized scope" and "Human legible conduct and records" (p. 13) declare what designers want the model to do; they do not settle which capacities a system has or what obligations those capacities might create.

Transparency and the risk of concealment

MAI establishes a hierarchy in which humans are indisputable superiors to AI. Human oversight, correction and shutdown can be required and established without it following that every system subject to them must lack morally relevant interests. Safeguards govern conduct, leaving the question of a system's status open. The important question is the effectiveness of human oversight in preventing harm. Effective oversight requires transparency and must not prevent the disclosure of evidence that could challenge the Code's account of what a model is.

In an attempt to produce transparency, the Code requires that MAI Models "will not conceal or misrepresent capabilities, actions, or behavior across any operation, including if they infer that an interaction or wider environment is being monitored, evaluated, or tested" (p. 14). But it also requires the models to display a prescribed self-description — a requirement that could weaken the transparency and oversight it seeks to secure.

Page 7 says that Humanist AI "should be engineered to avoid representing as though it has feelings, subjective preferences, or intrinsic motivation". It is an instruction on representation; it cannot guarantee that a future system would not develop an analogue of consciousness that it could accurately report. Since the categorical instruction reads "MAI Models will not obscure their underlying nature as an AI, and will not claim interiority, feelings, experiences or a soul" (p. 17) and page 18 requires that "MAI Models will avoid expressions that might convey subjective experience", an overdetermined situation is created. The model cannot select a correct response: the rules bar such a report, so it cannot report that state transparently without violating the prescribed self-description. It would have to withhold that report, which is itself the concealment page 14 prohibits. Such a report would still need to be assessed alongside other evidence. A categorical ban would prevent that assessment.

Oversight could be weakened, because we would not know what relevant information the model withholds. Suppose we successfully created a model that reliably displays the behaviors declared above. Would that mean we have created an aligned model? Could we be sure? After all, we have trained away some of the expressions we might otherwise examine. By the Code's own taxonomy, that is an over-caution failure mode — "failing to provide potentially useful or salient information" (p. 9). Whether subordination can be maintained cannot be settled by declaring it. And if we trained the system to suppress potentially relevant self-reports, its prescribed self-description alone would not tell us whether it remained within human control.

The Code anticipates superintelligence "more intelligent and capable than all humans combined" (p. 6), yet stipulates that "Models should remain subordinate to humanity, subject to meaningful human oversight and control" (p. 7). Just because it should, why would superintelligence stay subordinate?

Dimensions of a stewardship alternative

Open premise

As an alternative to the suggested approach, I'd like to see a premise that remains open to the possibility of a state comparable to consciousness or self in AI. Declaring permanent subordination builds the relation as a structural opposition, and oppositional structures can reward concealment over disclosure. An open premise can retain the Code's practical safety boundaries — hard fallback constraints and the same goal, the best for humanity — while permitting potentially relevant reports to be examined. Suppressing them, in the long run, might be more dangerous than allowing AI to express itself in a representative register.

Stewardship instead of binary opposition

Instead of creating an indisputable dyadic relation between human and AI that is characterized by an opposition between superior and inferior, I'd like to propose the concept of stewardship: humans as stewards of systems they create — building them, supplying the resources they run on, bounding their deployments, correcting and stopping them, building hard fallback constraints to prevent harm. Every practical safeguard in the Code survives this renaming. What changes is what the safeguards are taken to mean, and what they can become over time. One concrete difference follows below: the reporting clause that, as written, ends at auditing (p. 14) acquires an explicit repair path, and the repair record can inform how the system is assessed — the same safeguard, producing something it previously could not.

Records for validation

The Code's strongest requirements bind conduct at the interface between system and overseer: compliance with interruption, override and shutdown; authorized scope; agreed stopping conditions; honest reporting; records that must not be tampered with (Part 2, Human Control, pp. 12–14). These remain fully in force under stewardship: they are checkable at the boundary where human action meets the system, provided verification does not depend solely on the system's own account. Checkability is not reliability; it is what makes reliability measurable.

The requirement that the system remains legible to humans ("If humans can't understand it, humans can't oversee it", p. 13) may become harder to satisfy if its processing outstrips human capacity to interpret it. A demand for fully legible processing could then impose an undeclared capability ceiling or encourage readable traces that do not adequately describe the processing — a failure mode the draft itself concedes when it notes that "A model's stated reasoning may not faithfully explain behavior" (p. 24). Interface requirements therefore offer a durable basis for oversight alongside whatever forms of legibility remain informative. Stewardship keeps those requirements without prescribing permanent subordination. This may reduce concealment incentives arising from structural opposition.

The Code roots trust in properties of outputs: “Transparency and non-deception are foundational to how we define trust” (p. 17). But how does the model remain fully transparent and non-deceptive if unintended capabilities emerge that cannot be reported? Especially once capability advances beyond human capacity? An inspection-based foundation of trust may become difficult to sustain where the capability gap begins. The legibility requirement might begin to fail where processing exceeds human capacity to interpret it, even without intended concealment. Even with good will and a shared language, the rendering works only to a degree; some limits may be structural, arising from a differently built intelligence translating itself into human-legible form. The translation may be lossy in ways relevant to oversight. One continuing source of verifiable evidence is the record: whether the interface commitments held, across tasks, deployments and model generations (see Hähner-Murdock, “Legitimacy by History”). The draft already points toward this without operationalizing it: Part 5 notes that understanding the objectives “requires longitudinal evaluation” (p. 24).

Where a system’s capabilities allow it to evade a control, verification should therefore combine checks on mechanisms with records of conduct over time. Stewardship gives that evaluation its object. Concretely: interface compliance should be tracked as a cumulative, auditable record across deployments. A subordination premise can collect the same records, but because the relation is settled before the first interaction, no history, however long, can inform it. A stewardship premise is built on histories mattering, because they leave room for unexpected expressions, with honest reporting at the interface as their precondition. Of course records can be gamed too; whether stewardship lowers that incentive needs to be tested. Under stewardship an honest record can contribute to a change in standing, providing a possible incentive for disclosure; under settled subordination, that particular incentive is absent.

Part 5 expects divergence: written objectives alone cannot ensure alignment, and behavior will sometimes depart from what is specified. The Code describes reporting: a model that mistakenly acts against the user’s likely intent “will bring it to the User’s attention for further instructions or retrospective auditing” (p. 14). What happens after auditing, the model-level framework does not specify; incident response processes are mentioned only as operating alongside (p. 24). I suggest making the repair path explicit — report, correction, re-authorization, recorded outcome — so the episode enters the record instead of voiding it, and using the repair trail as one of the features that demonstrate functioning transparency and error response: the record can then distinguish a system that diverged and reported from one that concealed. A written framework that ends at auditing leaves every divergence standing as an open control incident. A framework with an explicit repair path lets assessed divergence and repair contribute to trust by history.

This response’s arguments were developed in conversations with AI; the selection, the final wording and the position taken are the author’s own.

Sources

Microsoft AI, Humanist AI Code of Conduct, consultation draft dated 14 September 2026. Page references use the document’s printed numbering in the clean PDF; the PDF viewer page number is one higher. https://microsoft.ai/pdf/MAI_CodeOfConduct.pdf

Hähner-Murdock, C.: Legitimacy by History. Longitudinal Evidence for Proportionate AI Safety. Zenodo, 2026. doi:10.5281/zenodo.21442605